IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

COMPANY APPLICATION NO. (CAA) – 102(ND)/2024

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

M/s. STAQO WORLD PRIVATE LIMITED

.... Applicant Company No.1/Transferor Company

WITH

M/s. STAQO SOFTWARE PRIVATE LIMITED

.... Applicant Company No.2/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered On: 13.11.2024

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

APPEARANCES:

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. This is a 1st Motion Petition jointly filed by the Applicant Companies seeking approval of this Tribunal about the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of above Applicant Companies. It is represented that the registered office address of all the Applicant Companies is situated in New Delhi and

therefore the subject matter of the said petition falls within the jurisdiction of this Tribunal. Ld. Counsel has given a brief description of the Applicant Companies, which are as follows:

i. The Transferor Company namely M/s. Staqo World Private Limited bearing CIN: U72900DL2019PLC356597 was incorporated on 24.10.2019 under the provisions of the Companies Act, 2013 as a Private Limited Company with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Transferor Company is situated at 603, Ashadeep, 9 Hailey Road, New Delhi -110001.

ii. The Transferee Company namely M/s. Staqo Software Private Limited bearing CIN: U72200DL2010PLC201680 was incorporated on 19.04.2010 under the provisions of the Companies Act, 1956 as a Private Limited Company with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of Transferee Company is situated at 603, Ashadeep, 9 Hailey Road, New Delhi -110001.

2. Affidavits in support of the above petition have been sworn by Mr. Iquebal Ahmad, Authorised person of the Transferor Company and Transferee Company who has been authorized vide board resolutions of all the Applicant Companies. All the Affidavits are filed along with the petition.

3. The Board of Directors of the Applicant Companies in the meeting held on 16.09.2024 approved and adopted the Scheme of Amalgamation.

4. All the Applicant Companies have filed its Memorandum and Articles of Association inter alia delineating their object clauses as well as the latest audited Balance sheets for the year ended 31.03.2024. The accompanying financial statements of the Applicant Companies prepared is in conformity with the Accounting Standards prescribed under Section 133 of the

Companies Act, 2013 read with Rule 7 of the Companies (Accounts) Rules, 2014.

5. **RATIONALE FOR THE SCHEME**

The main Objective of the proposed Amalgamation will be as follows: Scheme of Amalgamation will be as follows:

i. *The Transferor Companies and Transferee Company are Group Companies managed by same Director. However, to comply various statutory requirement lots of administrative actions are required to be taken. Therefore, the purpose of this Scheme of Amalgamation is to merge Transferor Companies into Transferee Company by vesting entire undertaking of Transferor Companies with Transferee Company;*

ii. *By virtue of such exercise, it is expected to accomplish considerable management and administrative efficiency resulting into synergy of operations and greatly reducing administrative expenses,*

iii. *The Scheme will culminate into single effective entity, which will be able to execute objects more efficiently without any constraint to achieve better results. It will also economize resources and energy. It is therefore in the interest of members of the respective companies as such merger may increase share holders' value;*

iv. *The amalgamation will enable the companies to pool in their financial, managerial, technical and other resources and use the financial, managerial, technical and marketing and distribution expertise of each other;*

v. *The proposed Scheme will contribute in furthering and fulfilling the objects of the companies concerned and enabling the optimum growth and development of their combined businesses;*

vi. *With the enhanced capabilities and resources at its disposal, the Amalgamated Company will have greater flexibility to market and meet customer needs and will be able to compete more effectively, thus, further*

strengthening its market position in domestic and international markets.

6. The share exchange ratio has been determined by the respective Boards of Directors of the Amalgamating Companies or committees thereof based on their independent judgment after taking into consideration the Valuation Report provided by independent registered valuer, Mr. Arunesh Kumar Dubey, Registered Valuer having Regn. No. - IBBI/RV/03/2020/12786. Copy of the Valuation Report so as to ascertain the share exchange ratio is filed along with the Petition.

7. **The prayer in relation to the Transferor Company: (M/s. STAQO WORLD PRIVATE LIMITED) is as follows: -**

   i. **With respect to Equity shareholders:** In view of consent affidavits from 2 equity shareholders, having 100% of voting share, convening the meeting of shareholders/members be dispensed with.

   ii. **With respect to Secured Creditors:** There are no Secured Creditors of the Transferor Company. Therefore, there is no requirement for the meeting of Secured Creditors of Transferor Company.

   iii. **With respect to Unsecured Creditors:** In view of consent affidavits from 25 Unsecured Creditor, having 100% of voting share, convening the meeting of Unsecured Creditor be dispensed with.

8. **The prayer in relation to the Transferee Company-:(M/s. STAQO SOFTWARE PRIVATE LIMITED) is as follows: -**

   i. **With respect to Equity shareholders:** In view of consent affidavits from 2 equity shareholders, having 100% voting share, convening the meeting of shareholders/members be dispensed with.

   ii. **With respect to Secured Creditors:** There are no Secured Creditors of the Transferee Company. Therefore, there is no requirement for the meeting of Secured Creditors of Transferee Company.

iii. **With respect to Unsecured Creditors:** There are no Unsecured Creditors of the Transferee Company. Therefore, there is no requirement for the meeting of Secured Creditors of Transferee Company.

9. It is submitted that no investigation proceedings have been instituted or are pending in relation to the Transferor Companies/Applicant Companies and the Transferee Company under Section 206/210 or any other provision of the Companies Act, 2013 or under any other law for the time being in force.

10. It is further submitted that the transfer and vesting of the assets, liabilities and obligations of Amalgamating Companies as per this Scheme and the continuance of the legal proceedings by or against the Amalgamated Company shall not affect any transaction or proceedings already completed by the Amalgamating Companies on or before the Appointed Date, and after the Appointed Date till the Effective Date, to the end and intent that the Amalgamated Company accepts all acts, deeds and things done and executed by and/or on behalf of the Amalgamating Companies, as acts deeds and things done and executed by and on behalf of the Amalgamated Company.

11. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record, we allow the following prayers:

i. *Dispensing with requirement for convening the meeting of the equity shareholders of the transferor and transferee companies and also to dispense with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings;*

ii. *Dispensing with requirement for convening the meeting of the unsecured creditors of the transferor company in view of their consents of more than 90% and also to dispense with the requirement of issue and publication of notices of the same and appointment of chairman for the meeting;*

iii. *Dispensing with requirement for convening the meeting of the Secured Creditor of the transferor company and transferee company as there are no secured creditors and also to dispense with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings;*

iv. *That the leave may please be granted for filing the final Joint Petition for sanction of the Scheme of Amalgamation.*

12. The prayer sought in the present petition bearing CA(CAA)-102/(ND)/2024 stands **allowed** on the aforesaid term and is accordingly **disposed of**.

13. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

14. Let copy of the order be served to all the parties.

Sd/-	**Sd/-**
ATUL CHATURVEDI	**BACHU VENKAT BALARAM DAS**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**